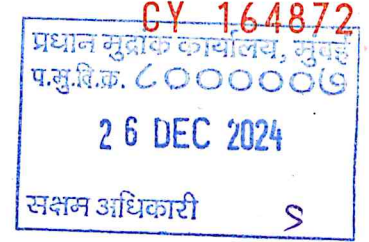




महाराष्ट्र MAHARASHTRA

2024



AMENDMENT NO. 2

श्रीमती संगिता जाधव

This Amendment No. 2 (**Amendment**) to Common Warehousing and Logistics Agreement dated 13th April 2022 is made on this 27th day of January 2025,

BETWEEN

MAHINDRA & MAHINDRA LIMITED, a Company incorporated under the Indian Companies Act, 1913 and having its Registered Office at Gateway Building, Apollo Bunder, Mumbai – 400 001 through its division Farm Sector (hereinafter referred to as “**Customer**” which expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include its successors and assigns) of One Part.

AND

MAHINDRA LOGISTICS LIMITED, a Company registered under the Companies Act, 1956 and having its registered office at Mahindra Towers, P.K. Kurne Chowk, Worli, Mumbai – 400 018 AND Corporate Office Arena Space, 10th & 11th Floor, Plot No.20, Jogeshwari Vikhroli Link Road, Near Majas Bus Depot, Jogeshwari (East), Mumbai – 400060 (hereinafter referred to as “**Service Provider**” which expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include its successors and permitted assigns) of the Other Part.



(Hereinafter "Customer" and "Service Provider" shall be individually referred to as the "**Party**" and collectively as "**Parties**".)

WHEREAS:

- A) Service Provider and the Customer have entered into a Common Warehousing and Logistics Agreement dated 13th April 2022 ("**The Principal Agreement**"). The Principal Agreement was valid from 1st April 2022 till 31st March 2023.
- B) The Parties then enter into Amendment Agreement No. 1 ("**Amendment No. 1**") dated 15th September 2023 to the Principal Agreement to extend the term of the said Principal Agreement for the period of one year starting from 1st April 2023 till 31st March 2024 and the Parties now wish to further extend the terms of the Principal Agreement for the period of three (03) years from 1st April 2024 till 31st March 2027.
- C) The Parties have decided and agreed to amend clause 8 "Indemnification and Insurance" of the Principal Agreement.
- D) Further, the Parties have decided and agreed to amend the commercials of the Principal Agreement mentioned at Annexure B (1), for which the Parties are entering into this Amendment to record the terms and condition as set out herein. All other terms and conditions of the Principal Agreement shall remain unchanged.

NOW THEREFORE THE PARTIES HERETO AGREE AS UNDER:

- A. Clause 5.1 under "**TERM AND TERMINATION**" of the Principal Agreement shall stand replaced with the following clause:

"5.1. This Agreement shall become effective from 1st April 2024 and shall be valid till 31st March 2027 (i.e. for a period of 36 months). Either Party shall be entitled to terminate the agreement as per the termination clause of the Principal Agreement."
- B. Clause 8 "**INDEMNIFICATION & INSURANCE**" of the Principal Agreement shall be amended by making following additions:
 - a. In the Event, SERVICE PROVIDER fails or neglects to perform any of its obligations herein undertaken or fails to discharge any financial/statutory obligations, SERVICE PROVIDER shall be liable to compensate any and all losses, damages or costs suffered by the COMPANY and to meet the claims and demands of the COMPANY in this regard.
 - b. SERVICE PROVIDER shall at all times during the continuance of this agreement, perform and observe all directions and instructions which may be given by the COMPANY or its representatives concerning their work and management and business in the said facility.
 - c. SERVICE PROVIDER shall at all times during the continuance of this Agreement be responsible for the safekeeping of inventory(Goods) and also of the machines and tools used in the Facility. In case of any theft, damage or loss of the Goods or the tools or machines



due to negligence of SERVICE PROVIDER, SERVICE PROVIDER shall indemnify the COMPANY for any damages, or loss suffered by the COMPANY on account of such damages, shortages, theft or loss of the Goods/machines/tools. M&M to have necessary material insurance of all the materials kept in WH/CDs. In case of theft, MLL shall provide M&M with the necessary documents required for insurance claim only (For e.g. FIR copy etc). If there is gross negligence or wilful misconduct from MLL then balance of insurance recovery amount to be recovered from MLL.

- C. The Parties have mutually agreed to revise the commercials mentioned in Annexure B (1) of the Principal Agreement with the commercials mentioned herein below as **Revised Commercial Annexure B (1)** attached to this Amendment and the same shall be effective from 1st April 2024 till 31st March 2027.
- D. The Parties confirm to each other that the transaction contemplated under this Amendment is being conducted in the ordinary course of their respective businesses. All payments under this Amendment shall be on arms' length basis.
- E. The Parties continued to perform the services post 31st March 2024 i.e., after expiration of the Principal Agreement and accordingly the Parties have now hereby mutually agreed to enter and record the extension of the Principal Agreement on the Execution Date of this Amendment for further period of 36 months on the terms and conditions mutually agreed hereto.

All other terms and conditions of the Principal Agreement shall remain the same and shall be read in conjunction with this Amendment in so far as they are applicable to the same.

The Principal Agreement shall hereafter be read and construed in conjunction with this Amendment and shall be regarded as amended accordingly.

Save and except to the extent of the additions hereinabove all other terms and conditions of the Principal Agreement shall remain unchanged and in full force and effect and binding on the Parties.

IN WITNESS WHEREOF this Amendment is executed in two counterparts on the day and year first above written. Each Party hereto shall preserve one counterpart of this Amendment.

For **MAHINDRA & MAHINDRA LIMITED**

Authorized Signatory

Name -

Designation -

Nitin Vaidya
(Nitin Vaidya)

R. S. Kulkarni

For **MAHINDRA LOGISTICS LIMITED**

Authorized signatory

Name: *Hrishikesh Chitnis*

Designation - *General Counsel*



Revised Commercial Annexure B (1)

Rates Applicable from 1st Apr 2024 onwards

SUMMARY - COSTS	COSTS	
	Qty	Cost/month
Rent of warehouse office & open space	43730	723185
Cost towards manpower cost	18	463689
Cost towards power/fuel/communication		Actuals
Welfare Costs		25000
Management Fees	8%	38391
Total Costs/month		12,50,265
Delivery cost (7.5T19ft)	Per trip	3000

Cost Breakup			
	Qty	Rs/unit	Total cost/month
Service charges (5% hike yearly)	43730	16.5375	723185
DEO	2	22432.68	44865
Pickers/Counters	8	20616	164928
Security	8	31737	253896
Staff Welfare/Stationary etc	1	25000	25000
Management fees	8%		38391
Total cost			12,50,265

Overtime will be charge at actuals as per Labor law regulation

Loading & Unloading charges will be applicable as per existing per Tonnage rates rate (Rs 65/ton)

Water and Electricity charges at actuals

Electricity charges @30% of total electricity bill

MLL Staff increment effective every August with respect to agreed norms.

Blue Collar staff increment based on minimum wage circular as per Government notifications.



Maharashtra Minimum Wages - Zone 1 (S&E) Jan-24

Category		Unskilled	Semi-Skilled	Skilled
BASE AMOUNT (BASIC)		10,021	10,856	11,632
DA		3,068	3,068	3,068
		13089.00	13924.00	14700.00
HRA 5%	5%	654.45	696.20	735.00
Conveyance				
		13743.45	14620.20	15435.00
PF CONTRIBUTION 13.00%	13.00%	1701.57	1810.12	1911.00
ESIC EMPLOYER CONTRIBUTION	3.25%	446.66	475.16	501.64
SUB TOTAL-1		15891.68	16905.48	17847.64
BONUS 8.33% on Total Amount (On Wages)	8.33%	1090.31	1159.87	1224.51
Leave Wages on Base Amount	7%	879.58	935.69	987.84
PF ON LEAVE WAGES	13.00%			
ESIC ON LEAVE WAGES	3.25%			
Maharashtra Labour Welfare Fund		6.00	6.00	6.00
SUB TOTAL-2	D	17867.58	19007.04	20065.99
Uniform & PPES				
BA Service @550/-	550	550	550	550
CTC		18417.58	19557.04	20615.99



Category Civilian	For 08 Hrs Duty	For 08 Hrs Duty
Particulars	Security Guard / Lady Searcher	Security Guard / Lady Searcher
Basic	12984	13959
D.A.	3068	3068
Minimum Wages	16052	17027
H.R.A.	3210.4	3405.4
C.A	600	600
W.A	600	600
Education All.	600	600
Extra Duty (4 Hrs)	0	0
Total Wages	21062.4	22232.4
Levy on Minimum Wages		
P.F.	2086.76	2213.51
ESIC	665.028	703.053
Bonus	1337.1316	1418.3491
Leave	642.08	681.08
National Holiday	0	0
Uniform	250	250
Training Charges	200	200
MLWF	6	6
Administrative Charges	481.56	510.81
Total Levy	5669	5983
Gross Wages	26731	28215
Reliving Charge	4456	4703
Sub Total	31187	32919
BA Service Charge	550	550
Total	31737	33469

